Tentative Rulings for August 3, 2026
Department 7

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 766 6465

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305442	RIVERSIDE FOOD HALL LP VS DHAT CREOLE GRILL LLC	MOTION TO ENFORCE SETTLEMENT BY RIVERSIDE FOOD HALL LP

Tentative Ruling: Plaintiff Riverside Food Hall LP's Motion to Enforce Judgment is granted in part. Judgment is entered in favor of Plaintiff and against Defendants in the amount of $54,000 ($73,000 less $19,000 credit), plus lawful post-judgment interest and any $100 late fees authorized by Paragraph C; and denied as it seeks entry of the $88,000 stipulated judgment under Paragraph D; and Plaintiff's request for attorney's fees without prejudice.

CCP § 664.6(a)

CCP § 664.6(a) provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (CCP § 664.6(a).)

Here, Plaintiff has demonstrated that the statutory requirements are met under section 664.6(a). The parties entered into a written Settlement Agreement signed by all parties outside of the presence of the Court on April 30, 2025. (Tessier Decl. ¶ 1.) The Settlement Agreement was filed with the Court on May 21, 2025. The Settlement Agreement also contains an express retention-of-jurisdiction clause under CCP § 664.6. (*Id.*) The Court therefore has jurisdiction to enforce the settlement's actual terms.

Liquidated Damages under Civ. Code § 1671(b)

CCP § 664.6(a) "allows courts to enter judgment under the terms of a settlement agreement," but it "cannot enter a judgment that contains an unenforceable liquidated damages clause." (*Graylee v. Castro* (2020) 52 Cal.App.5th 1107, 1114.) "'Section 664.6 does not allow a court to endorse or enforce a provision in a settlement agreement or stipulation which is illegal, contrary to public policy, or unjust.'" (*Id.* at 1114 [internal quotation omitted].)

Civ. Code § 1671(b) governs liquidated damages provisions in commercial contracts. A liquidated damages clause "will generally be considered unreasonable, and hence unenforceable under section 1671, subdivision [b], if it bears no reasonable relationship to the range of actual damages that the parties could have anticipated would flow from a breach. The amount set as liquidated damages 'must represent the result of a reasonable endeavor by the parties to estimate a fair average compensation for any loss that may be sustained.' [Citation.] In the absence of such relationship, a contractual clause purporting to predetermine damages 'must be construed as a penalty.'" (*Greentree Financial Grp., Inc. v. Execute Sports, Inc.* (2008) 163 Cal.App.4th 495, 499–503 ["*Greentree*"]; *see also Vitatech Int'l, Inc. v. Sporn* (2017) 16 Cal.App.5th 796, 806–08 ["*Vitatech*"].)

Plaintiff contends that the parties stipulated to entry of judgment in the amount of $88,000 upon default and that the Court must enforce the agreement between the parties and enter judgment in that amount. Defendants oppose, arguing that the $88,000 figure is $15,000 more than the $73,000 settlement of the underlying claim and bears no reasonable relationship to the damages that could be anticipated from a late payment under the Settlement Agreement. Defendants contend that damages from a late payment are, at most, the time value of money (interest) plus the $100 late fee the contract itself already fixes, and that the $88,000 judgment is the pre-litigation demand figure repurposed as a penalty for breach of the Settlement Agreement.

The Court finds that the stipulated judgment provision for $88,000 is an unenforceable penalty under section 1671(b). This case presents the same legal structure that the California Court of Appeal reversed in *Greentree* and *Vitatech*. In *Greentree*, the plaintiff sued for $45,000, and the parties settled for $20,000 in installments. On default, judgment of $61,232.50 was entered. The Court of Appeal reversed, holding that the parties "did not attempt to anticipate the damages that might flow from a breach of the stipulation. Rather, they simply selected the amount [the plaintiff] had claimed as damages in the underlying lawsuit, plus prejudgment interest, attorney fees, and costs." (*Greentree*, *supra*, 163 Cal.App.4th at 499–500.) The court further noted that "the $61,232.50 amount in the judgment bears no reasonable relationship to the range of actual damages the parties could have anticipated from a breach of the stipulation to settle the dispute for $20,000. '[D]amages for the withholding of money are easily determinable—i.e., interest at prevailing rates.'" (*Id.* at 500.) The judgment was ultimately reduced to $20,000 plus post-judgment interest and costs. (*Id.* at 501.)

Vitatech presents the most relevant precedent in relation to the facts of this case. There, a claim exceeding $166,000 was settled for a single payment of $75,000. On default, judgment in excess of $300,000 was entered. The Court of Appeal reversed, holding: "the amount of the judgment must reasonably relate to the damages likely to arise from the breach of the stipulation, not the alleged breach of the underlying contract, because it is the breach of the stipulation that allows Vitatech to enter judgment against Appellants." (*Vitatech*, *supra*, 16 Cal.App.5th at 810.) The court further held that "the stipulated judgment for more than four times the amount Vitatech agreed to accept as full settlement of its claims is an unenforceable penalty because it bears no reasonable relationship to the range of damages the parties could have anticipated would result from Defendants' failure timely to pay the settlement amount." (*Id.* at 801.) The court rejected the argument that the provision was merely a "discount" arrangement: "the stipulation for entry of judgment is not merely a permissible discount provision because the stipulation compromises disputed claims and resolves pending litigation. Although Defendants stipulated to entry of judgment if they did not timely pay, they never admitted liability on the underlying claims or the amount of damages allegedly caused by the breach of the underlying contract." (*Id.*) The remedy: a new judgment for the $75,000 settlement sum. (*Id.* at 815.)

Here, as in *Greentree* and *Vitatech*, nothing in the stipulation or record establishes a reasonable relationship between Defendants' failure to pay the $73,000 settlement amount in installments and the $88,000 judgment. The stipulation contains no language indicating that the parties attempted to estimate the damages that would flow from a late payment. The $88,000 figure appears to be the pre-settlement demand figure, not a reasonable estimate of the harm caused by late payment. As *Greentree* held, damages for the withholding of money are easily determinable—*i.e.*, "interest at prevailing rates." (*Greentree*, *supra*, 163 Cal.App.4th at 500.) The Settlement Agreement itself fixes a $100 late fee per missed payment. (Settlement Agreement ¶ C.) A judgment that adds $15,000 to the agreed settlement sum bears no reasonable relationship to these readily calculable damages.

The fact that the parties labeled the provision a “stipulated judgment” rather than “liquidated damages” is immaterial. The Court looks to substance, not form. “[A] court will interpret a liquidated damages clause according to its substance, and if it is otherwise valid, will uphold it even if the parties have referred to it as a penalty.” (*Vitatech*, *supra*, 16 Cal.App.5th at 806.) Here, the stipulation predetermines the amount of damages Plaintiff is entitled to receive if Defendants breach the stipulation by failing timely to pay the settlement amount. The provision establishing the amount of the stipulated judgment is therefore unenforceable unless that amount bears a reasonable relationship to the amount of damages the parties could have anticipated Plaintiff would suffer if Defendants breached their obligation to pay the settlement amount.

Unsatisfied Preconditions

Even if Paragraph D were enforceable, Plaintiff did not establish the contractual preconditions to entry of judgment. Paragraph D provides that a stipulated judgment may be entered only “upon default and failure to pay after ten calendar days has elapsed after written notice to Defendants in care of their legal counsel Joseph Richardson.” (Settlement Agreement ¶ D.) That language imposes two mandatory conditions precedent: (1) written notice of default delivered to Defendants in care of their counsel Joseph Richardson, and (2) the lapse of ten calendar days without cure. The moving party under section 664.6 bears the burden of proving satisfaction of any such conditions.

Plaintiff has not carried that burden. The Vera and Tessier declarations submitted in support of the motion describe only internal communications between Plaintiff’s counsel and Plaintiff’s own manager regarding the payment status. The only reference to communication with Defendants’ counsel is Vera’s statement that on October 17, 2025, he “informed Defendant’s Counsel” that Defendants had failed to make payments and that his office “would be moving forward filing the paperwork to enter the full amount owed for the Judgment plus attorney’s fees.” (*See* Pl.’s Mot. 4: 8–10.) That single sentence does not establish that formal written notice of default was delivered to Defendants in care of Joseph Richardson, and no such notice is attached to the motion. A statement that counsel would be “moving forward filing the paperwork” does not satisfy the contractual requirement of written notice triggering the ten-day cure period. Mr. Alce further declares under penalty of perjury that he never received a written notice of default addressed to him in care of Joseph Richardson before this motion was filed. (Alce Decl. ¶ 8.) Accordingly, for this independent reason, entry of the $88,000 stipulated judgment under Paragraph D is not warranted.

Credit for Prior Payments

Although the $88,000 stipulated judgment under Paragraph D is unenforceable as a penalty and its preconditions have not been satisfied, the undisputed evidence establishes that Defendants owe $54,000 under the Settlement Agreement, and the Court may enter judgment for that amount pursuant to the settlement’s actual terms under section 664.6. Plaintiff’s proposed judgment seeks $88,000 without crediting the undisputed $19,000 Defendants have paid, which includes payments of $10,000 on June 18, 2025; $2,000 on July 21, 2025; and $7,000 on July 29, 2025. (Tessier Decl. ¶ 4; Vera Decl. ¶ 4.) Defendants argue that seeking $88,000 while ignoring prior payments would result in an improper recovery of approximately $107,000 on a $73,000 settlement.

Accordingly, any judgment must credit the undisputed $19,000, leading to a total due of $54,000 ($73,000 settlement minus $19,000 paid), along with lawful post-judgment interest and any $100 late fees authorized by Paragraph C of the Settlement Agreement.

Request for Attorney's Fees

Plaintiff seeks $18,000 in attorney's fees as the prevailing party under the Settlement Agreement. However, Defendants argue that both Paragraph D and Judgment paragraph 1 provide for fees "according to proof" at a "prove-up hearing," and contend that Plaintiff has failed to provide any supporting documentation, such as billing records, a fee declaration, or a lodestar analysis, to justify the request. (Settlement Agreement ¶ D.) As the Settlement Agreement explicitly contemplates a prove-up hearing with evidence presented "according to proof," and in light of Plaintiff's lack of evidentiary support for the requested amount, the Court denied the request for attorney's fees without prejudice, allowing Plaintiff to pursue a properly noticed prove-up process.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400078	ALMAZAN VS W.A RASIC CONSTRUCTION COMPANY, INC.	DEMURRER ON CROSS-COMPLAINT OF W.A RASIC CONSTRUCTION COMPANY, INC. BY QUANTA SERVICES, INC., UTILITY LINE MANAGEMENT SERVICES, INC., QUANTA UTILITY ENGINEERING SERVICES.

Tentative Ruling: Hearing continued to 9/21/26.

Cross Defendants wholly failed to submit a declaration evidencing meet and confer efforts as required by Code of Civil Procedure section 430.41. Cross Defendants are ordered to meet and confer in person, via phone or videoconference with Cross Complainant for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Cross Defendants shall identify the specific causes of action that they believe are subject to demurrer and identify with legal support the basis of the deficiencies. Cross Complainant shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Cross Defendants shall 10 days before the continued hearing date set do one of the following: (1) vacate the hearing on the demurrer and motion to strike, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Cross Complainant will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means (in person, phone, or videoconference) by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41.)

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The moving party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Cross Defendants failed to submit a declaration evidencing meet and confer efforts. The Court admonishes counsel for failure to comply with Code of Civil Procedure that expressly requires a meet and confer.

Cross Defendants' Request for Judicial Notice (RJN)

The Court denies RJN of Exhibit 1 (Sacramento County Citizen Access Fictitious Business Search). Materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599; *Stevens v. Superior Court* 91999) 75 Cal.App.4th 594, 608.) If a document was filed by the governmental agency itself, then Evidence Code section 452, subdivision (c), applies and judicial notice can then be granted.

As to Exhibit 2, it appears to be the Compromise and Release form, in other words the settlement contract, paying out the injured employee, Plaintiff, for case number ADJ17384473. The listed employer is "Quanta International Utility Line Management." The date of injury is December 9, 2022, which is the same date alleged as Plaintiff's injury date in the Complaint and Cross Complaints. Cross Defendants contend that the separately named entities Quanta Utility Engineering Services ("QUES") and Utility Line Management Services, Inc. ("ULMS") are the fictitious business names of PAR Western Line Contractors, LLC ("PAR"), which is Plaintiff's employer.

In opposition, WARC argues the documents do not establish that PAR registered the names QUES and ULMS. WARC argues Exhibit 2 does not identify the listed employer as PAR or any of the entities named in WARC's Cross Complaint.

In reply, Cross Defendants filed a supplemental RJN asking for judicial notice of Exhibit 3 to clear this defect. Exhibit 3 is an Order from the Workers Compensation Judge amending the order approving the Compromise and Release that is Exhibit 2.

"The general rule of motion practice…is that new evidence is not permitted with reply papers." (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, a trial court is "vested with a sound discretion as to the permissible scope of evidence offered in rebuttal." (*Tesoro del Valle Master Homeowners Assn. v. Griffin* (2011) 200 Cal.App.4th 619, 641.) Under Evidence Code section 210, relevant evidence is evidence that tends to prove or disprove any disputed fact that is of consequence to the determination of the action. Because Plaintiff's employer is disputed, it is proper to consider the evidence submitted with the reply. Indeed, it would be appropriate for the Court to grant RJN as to Exhibits 2 and 3, with Exhibit 3 being foundation for Exhibit 2, under Evidence Code section 452, subdivisions (c) and (d). However, the Court continues the hearing to afford WARC the opportunity to respond to the new evidence before ruling on the merits.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504173	COUNTY OF RIVERSIDE VS COX	MOTION TO QUASH SERVICE OR DISMISS PETITION FOR WRIT OF MANDATE BY NATHANIEL COX

Tentative Ruling: Respondent's Motion to Quash Service is granted.

Order to Show Cause is set for 9/21/26, as to why sanctions not to exceed $1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to PLAINTIFF AND VIDDELL LEE HEARD.

Timeliness of Petition

County states it submitted the Petition to the Court on July 18, 2025. (Tokubo Decl. ¶3.) Then on July 22, 2025, County learned the filing had been rejected. (Id. ¶4.) It then refiled the Petition on July 22, 2025. (Ibid.)

CCP §1094.6(b) states: "Any such petition shall be filed no later than the 90th day following the date on which the decision becomes final." Hearing Officer Stiglitz issued the Decision and Award on April 21, 2025. Ninety days after April 21, 2025, was Sunday July 20, 2025. Respondent contends the 90-day deadline ended on July 19, 2025. However, the ninetieth day after April 21, 2025, is July 20, 2025. Since the deadline ended on a Sunday, the true deadline to file the Petition was Monday July 21, 2025. (CCP §§ 12, 12a.)

The parties disagree about when Hearing Officer Stiglitz's decision became final. CCP §1094.6(b) provides the rules for determining when a decision becomes final: (1) if there is no provision for reconsideration of the decision, the decision is final on the date it is announced; (2) if there is a provision for reconsideration, the decision is final for purposes of this section upon the expiration of the period during which such reconsideration can be sought; or (3) if there is a provision for a written decision or written findings, the decision is final for purposes of this section upon the date it is mailed by first-class mail, postage prepaid, including a copy of the affidavit or certificate of mailing, to the party seeking the writ. The parties do not discuss which of these rules applies to the present action. Petitioner contends the third rule applies and since Hearing Officer Stiglitz only emailed his decision instead of sending it by first-class mail, the ninety-day deadline never started to run. Again, Petitioner does not explain why it believes this rule applies as opposed to the other rules listed in §1094.6(b).

In *Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, a former employee of the Metropolitan Transportation Authority filed petition for judicial review of the authority's decision to terminate his employment. The court found the 90-day deadline never began to run because MTA never provided Herman with notice of his termination. Instead, they sent the notice to Herman's counsel. However, the court also noted that even if notice to Herman's counsel had been sufficient to begin the 90-day period, a petition filed a few days late where the party opposing the petition did not argue the delay resulted in any prejudice was not barred by laches or equitable estoppel.

Here, even if the court finds the 90-day period began on April 21, 2025, County's Petition was only filed one day late. Respondent has not argued this one-day delay caused any prejudice. So, even if the court believes the Petition was filed a day late, the court need not dismiss the petition as Respondent has not demonstrated any prejudice from the minor delay.

Motion to Quash

A defendant may file a motion to quash service of summons on the grounds of lack of jurisdiction under CCP § 418.10(a)(1) "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow." Personal jurisdiction is required in any action that seeks to impose personal liability against a defendant. In opposing a motion to quash, the burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (*Ziller Electronics Lab GmbH v. Superior Court (Grosh Scenic Studios*) (1988) 206 Cal.App.3d 1222, 1232.) If plaintiff meets this burden, "it becomes defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (*Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362.)

Respondent argues he was never served with the Summons and Complaint. Respondent contends he has not been served to this day. As noted above, Petitioner filed a Proof of Service on March 25, 2026. That POS indicates Attorney Chulak was served with the Petition for Writ of Mandate on February 22, 2025.

First, the date on the POS is clearly incorrect. Hearing Officer Stiglitz's decision was not communicated to the parties until April 21, 2025. County did not file the Petition until July 22, 2025. County could not have served a Summons for the Writ Petition before the decision it was challenging was even made. This POS is not valid.

Second, Attorney Chulak states he only ever received an email containing "an apparent draft of a Petition that was not filed with the court, contained no case number, no court stamp, nor any indicia that any initiating pleading was filed with the court." (Chulak Decl. ¶5.) He never executed a Notice and Acknowledgement of Receipt of Summons relating to this action. (¶6.) Respondent Cox also states he has never been served with a Summons in this action or executed a Notice and Acknowledge of Receipt. (Cox Decl. ¶¶3-6.)

In Opposition to the motion, Attorney Viddell Lee Heard states his secretary, Linda Tokubo, served Attorney Chulak with a copy of the Petition on July 18, 2025. (Heard Decl. ¶4.) Attorney Heard indicates Attorney Chulak and his firm have "always behaved in a manner that indicated…his firm was Respondent's counsel in this matter." (Heard Decl. ¶5.) Linda Tokubo provides a copy of the email she sent to Attorney Chulak on July 18, 2025. (Tokubo Ex. A.) The email includes an attached Petition that is not file-stamped and does not otherwise indicate it was filed with the court.

"A writ must be served in the same manner as a summons in a civil action, except when otherwise expressly directed by order of the Court." (CCP §1096.)

Here, Petitioner contends it properly served Respondent by emailing Attorney Chulak a copy of the writ Petition. The copy sent to Attorney Chulak did not have a file stamp. There was no documentation or other indication to show the Petition had been filed with the Court. County's one attempt to provide the Court with a proof of service was defective, as discussed above. In fact, the POS County previously provided does not indicate County served Attorney Chulak on July 18, 2025, as it now contends. County has not once provided a Proof of Service indicating it ever served Respondent with the Petition. The email from Tokubo to Attorney Chulak is simply not enough. There is no evidence Respondent ever received notice that an actual Petition had been filed. Clearly Respondent learned the Petition was filed but, importantly, actual notice of the action is not itself a valid substitute for proper service of process and will not confer jurisdiction over defendant when there has been a complete failure to comply with the statutory service of process requirements. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392.) A defendant is under no duty to respond in any way to a defectively served summons. It makes no difference that defendant had actual knowledge of the action. Such knowledge does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

County has failed to provide any evidence that Respondent was ever served with the Petition once it was filed. In Opposition to the instant motion County does not even attempt to provide a proof of service. Rather, County relies on the email Tokubo sent to Attorney Chulak with an unfiled copy of the Petition. This is not enough to satisfy the service requirements.

General Appearance

County contends Respondent has made general appearances in this action and thus has waived his right to challenge defects in service. Personal jurisdiction may be asserted over nonresident defendants who make a general appearance in the action, thereby dispensing with the necessity of personal service: “A general appearance by a party is equivalent to personal service of summons on such party.” (CCP § 410.50(a); see *Fireman’s Fund Ins. Co. v. Sparks Const., Inc.* (2004) 114 Cal.App.4th 1135, 1145 (by making general appearance, defendant forfeits any objection to defective service even if unaware such objection was available).) “If the defendant raises an issue for resolution or seeks relief available only if the court has jurisdiction over the defendant, then the appearance is a general one.” (*Factor Health Mgmt. v. Sup.Ct. (Apex Therapeutic Care, Inc.)* (2005) 132 Cal.App.4th 246, 250.)

Here, Respondent’s counsel filed a Notice of Remote Appearance for the January 26, 2026, Status Hearing in Department 7. That Status Hearing was not heard. (See 1/22/26 Minute Order.) Respondent did not appear generally at this time.

On February 19, 2026, Respondent’s counsel again filed a Notice of Remote Appearance for the Status Hearing on February 26, 2026. The Court’s February 26, 2026, Minute Order indicates Steve Schulak *specially appeared* for Nathaniel Cox. This does not constitute a general appearance. A lawyer’s or nonresident defendant’s characterization of an appearance as a “special appearance” to contest jurisdiction is not controlling. If a party seeks relief on any basis other than lack of personal jurisdiction, it is a general appearance: “One cannot alter by reservation the personal jurisdiction conferred by minimum contacts or consent.” (*Szynalski v. Sup.Ct. (Rosenthal & Co., LLC)* (2009) 172 Cal.App.4th 1, 10.) Respondent did not seek any relief from the court at this time. Counsel merely attended a Status Hearing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507436	REMIGIO VS FCA US LLC	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER $35,000) OF CONSTANTION P REMIGIO BY FCA US LLC

Tentative Ruling: Defendant FCA US LLC's Demurrer as to the 6th Cause of Action is overruled.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Tarmann v. State Farm Mut. Auto. Ins.* (1991) 2 Cal.App.4th 153, 156.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 967.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Tarmann*, *supra*, 2 Cal.App.4th 156.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1358.)

FCA demurs to the sixth cause of action for fraudulent inducement concealment on the grounds that (1) it is barred by the applicable statute of limitations; (2) it fails to plead facts with the requisite specificity, including a transactional relationship giving rise to a duty to disclose; and (3) it is barred by the economic loss rule.

Statute of Limitations

FCA first argues that the sixth cause of action for fraudulent inducement concealment is barred by the applicable statute of limitations.

Claims sounding in fraud are subject to a three-year statute of limitations. (CCP § 338(d); *see also Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1391.) The limitations period for fraud is not deemed to have accrued until the plaintiff's discovery of the facts constituting the fraud or mistake—*i.e.*, until the plaintiff learns or has reason to know of the fraudulent nature of the representation or omission. (CCP § 338(d); *Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35.) "When [] it is apparent on the face of a pleading that the time limit of an applicable statute of limitations has run, in order to avoid the bar of the statute it is incumbent upon the pleader to state, with particularity, facts, rather than conclusions, which excuse his failure to learn of the fraud within the statutory period." (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900.)

FCA argues that because Plaintiff alleges he entered into the warranty contract on February 15, 2022, he had to file his fraud claim no later than February 15, 2025. FCA contends that Plaintiff did not file the Complaint until June 27, 2025, over four months too late. FCA further argues that Plaintiff cannot rely on the delayed discovery rule because the Complaint alleges that "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period[.]" (Def.'s Demurrer 8:26–28 [citing Compl. ¶ 12].)

However, the Complaint also specifically alleges that "Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them." (Compl. ¶ 38.) The Complaint further pleads that the running of any applicable limitations period has been tolled by, inter alia, the discovery rule and the fraudulent concealment rules. (*Id.* at ¶ 37.)

At this stage of the proceeding, the Court must accept as true all material allegations in the Complaint, regardless of how improbable they may seem. (*Sepanossian v. Nat'l Ready Mixed Concrete Co.* (2023) 97 Cal.App.5th 192, 196, 199, fn. 3.) Accordingly, the Court must accept as true Plaintiff's allegations that the subject vehicle developed defects within the warranty period (Compl. ¶ 12) and that Plaintiff did not discover FCA's alleged fraudulent concealment until shortly before initiating this lawsuit (Compl. ¶ 38). When a plaintiff reasonably should have discovered facts constituting fraud is generally a question of fact, and is properly decided as a matter of law only if the allegations can support only one reasonable conclusion. (*Broberg v. Guardian Life Ins. Co. of Am.* (2009) 171 Cal.App.4th 912, 921.) That is not the case here.

Requisite Specificity

FCA next argues that the sixth cause of action for fraudulent inducement concealment fails because Plaintiff did not plead the fraud claim with the requisite specificity.

The elements of an action for fraud and deceit based on concealment are: (1) the defendant concealed a material fact; (2) the defendant had a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed the fact with intent to defraud; (4) the plaintiff was unaware of the fact and would not have acted had he or she had knowledge of the concealed fact; and (5) the plaintiff sustained damages as a result of the concealment. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311 [internal quotation omitted].) Fraud in the inducement is a subset of the fraud tort occurring when a promisor's consent is induced by fraud. (*Hinesley v. Oakshade Town Ctr.* (2005) 135 Cal.App.4th 289, 294; *see also Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 973–74.)

Each element of a claim for fraud must be pleaded with specificity rather than with general and conclusory allegations. (*Lazar v. Sup. Ct.* (1996) 12 Cal.4th 631, 645; *Alfaro*, *supra*, 171 Cal.App.4th at 1384.) Less specificity is required where the defendant necessarily possesses the information. (*Committee on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 217.) Furthermore, claims based on an omission can succeed without the same level of specificity required by a normal fraud claim. (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1199.)

In *Dhital*, the California Court of Appeal addressed the sufficiency of concealment allegations for pleading purposes in a lemon law fraud case. The court found it sufficient that plaintiffs alleged a transmission defect in numerous vehicles, including the plaintiff's, that the defendant knew of the defect and the hazards it posed, that the defendant had exclusive knowledge of the defect and failed to disclose that information, that the defendant intended to deceive plaintiffs by concealing known defects, that the plaintiffs would not have purchased the car if they had known of the defects, and that they suffered damages on the sums paid to purchase the vehicle. (*Dhital*, *supra*, 84 Cal.App.5th at 844.)

In the Complaint, Plaintiff alleges that FCA knew about the Engine Defect in his vehicle and obtained this knowledge from sources not available to the public, including pre-production and post-production testing data, early consumer complaints about the Engine Defect made directly to FCA and its network of dealers, aggregate warranty data compiled from FCA's dealers, testing conducted by FCA in response to complaints, and warranty repair and part replacement data received from FCA's dealers. (Compl. ¶¶ 19, 23.) Plaintiff further alleges that FCA concealed the Engine Defect from consumers, including himself (Compl. ¶¶ 20, 25); that he would not have purchased the vehicle had he known about the defects (¶¶ 21, 69); that he suffered actual damages by purchasing the vehicle (¶ 24); and that FCA was in a superior position from various internal sources to know the true state of facts about the Engine Defect (¶ 67). At the pleading stage, these allegations are sufficient to assert a cause of action for fraudulent inducement concealment. Thus, the Court should overrule the demurrer to the sixth cause of action for fraudulent inducement concealment on this ground.

Duty to Disclose

FCA further argues that Plaintiff failed to allege a transactional relationship that gives rise to a duty to disclose. This argument is not persuasive.

For fraudulent concealment to be actionable, the defendant must have been under a duty to disclose the facts to the plaintiff. (*People v. Highland Fed. Sav. & Loan* (1993) 14 Cal.App.4th 1692, 1718; *Stevens v. Sup. Ct.* (1986) 180 Cal.App.3d 605, 608–10.) There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: "(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336; *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1130–31.) The last three require evidence of some transaction—*i.e.*, direct dealings between the plaintiff and the defendant. (*LiMandri*, *supra*, 52 Cal.App.4th 337; *Bjoin v. J-M Manufacturing Co., Inc.* (2025) 113 Cal.App.5th 884, 902.)

In *Bigler-Engler*, the plaintiff had sued her doctor, the manufacturer, and a supplier regarding the malfunction of a medical device providing cold therapy. The plaintiff had rented the device from a supplier. The court found there was no duty to disclose because there was no relationship between the plaintiff and the manufacturer, no evidence the manufacturer knew that the plaintiff even had the device (since she obtained it from a supplier), and no evidence that the manufacturer advertised the device to the public. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 314.)

FCA cites *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 for the proposition that there is "no close relationship between vehicle manufacturers and vehicle purchasers," and that no transactional relationship exists merely by virtue of the sale of the vehicle. (*See* Def.'s Demurrer 6:24–26.) That reliance is misplaced. *Ford Motor Warranty Cases* addressed whether a manufacturer that was not a signatory to the retail sales contract could invoke its arbitration clause under equitable estoppel; it did not hold that a vehicle manufacturer owes no disclosure duty to a purchaser under its own written warranty. Nothing in *Ford Motor Warranty Cases* forecloses a duty to disclose arising from direct warranty dealings between a manufacturer and a purchaser.

Here, Plaintiff alleges that he entered into a warranty contract with FCA regarding the subject vehicle. (Compl. ¶ 7.) Plaintiff further alleges that FCA and its representatives have been unable to repair the subject vehicle to conform to the applicable express warranties after a reasonable number of repair attempts. (*Id.* at ¶¶ 38, 41, 43.) That demonstrates a transactional relationship for pleading purposes. As discussed above, Plaintiff pled exclusive knowledge. (*Id.* at ¶¶ 19, 67(a)–(b).) Thus, the Court should overrule FCA's demurrer to the sixth cause of action for fraudulent inducement concealment on this ground.

Economic Loss Rule

FCA finally argues that the sixth cause of action is barred by the economic loss rule and the independent tort principle under *Rattagan*. This argument is not persuasive at the pleading stage.

Conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law. (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 551.) However, the economic loss rule does not bar recovery for intentional tort claims like fraudulent inducement. (*Rattagan*, *supra*, 17 Cal.5th at 38.) No rational party anticipates fraud. (*Id.* at 33.)

In *Dhital*, the Court of Appeal addressed whether fraudulent inducement by concealment falls within an exception to the economic loss rule. (*Dhital*, *supra*, 84 Cal.App.5th at 836.) The court held that fraudulent inducement by concealment falls outside the coverage of the economic loss rule because the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Id.* at 841.) The independence requirement is satisfied in the case of fraudulent inducement—whether achieved by intentional concealment or by intentional affirmative misrepresentations—because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions. (*Id.*)

Here, the sixth cause of action alleges that FCA concealed the Engine Defect prior to the sale of the vehicle, and that Plaintiff would not have purchased the vehicle had he known of the defect. (Compl. ¶¶ 21, 65, 66.) The alleged concealment occurred before the warranty contract was formed and induced Plaintiff to enter into the transaction. Under *Dhital*, that conduct falls outside the economic loss rule.